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Title 17 —Commodity and Securities Exchanges

Chapter II —Securities and Exchange Commission

Part 229 —Standard Instructions for Filing Forms Under Securities Act of 1933, Securities

Exchange Act of 1934 and Energy Policy and Conservation Act of 1975—Regulation S-K

Subpart 229.1300 —Disclosure by Registrants Engaged in Mining Operations

Source: 83 FR 66448, Dec. 26, 2018, unless otherwise noted.

Authority: 15 U.S.C. 77e, 77f, 77g, 77h, 77j, 77k, 77s, 77z-2, 77z-3, 77aa(25), 77aa(26), 77ddd, 77eee, 77ggg, 77hhh, 77iii, 77jjj, 77nnn, 77sss, 78c, 78i, 78j, 78j-3, 78l, 78m, 78n, 78n-1, 78o, 78u-5, 78w, 78ll, 78 mm, 80a-8, 80a-9, 80a-20, 80a-29, 80a-30, 80a-31(c), 80a-37, 80a-38(a), 80a-39, 80b-11 and 7201 et seq.; 18 U.S.C. 1350; sec. 953(b), Pub. L. 111-203, 124 Stat. 1904 (2010); and sec. 102(c), Pub. L. 112-106, 126 Stat. 310 (2012).

Source: 47 FR 11401, Mar. 16, 1982, unless otherwise noted.

§ 229.1303 (Item 1303) Summary disclosure.

(a)

- (1) A registrant that has material mining operations, as determined pursuant to § 229.1301, and two or more mining properties, must provide the information specified in paragraph (b) of this section for all properties that the registrant:
 - (i) Owns or in which it has, or it is probable that it will have, a direct or indirect economic interest;
 - (ii) Operates, or it is probable that it will operate, under a lease or other legal agreement that grants the registrant ownership or similar rights that authorize it, as principal, to sell or otherwise dispose of the mineral; or
 - (iii) Has, or it is probable that it will have, an associated royalty or similar right.
- (2) A registrant that has material mining operations but only one mining property is not required to provide the information specified in paragraph (b) of this section. That registrant need only provide the disclosure required by § 229.1304 for the mining property that is material to its business.
- (3) A registrant that has a royalty, streaming or other similar right, but which lacks access to any of the information specified in paragraph (b) of this section about the underlying properties, may omit such information, provided that the registrant:
 - (i) Specifies the information to which it lacks access;
 - (ii) Explains that it does not have access to the required information because:
 - (A) Obtaining the information would result in an unreasonable burden or expense; or
 - (B) It requested the information from a person possessing knowledge of the information, who is not affiliated with the royalty company or similar registrant, and who denied the request; and
 - (iii) Provides all required information that it does possess or which it can acquire without incurring an unreasonable burden or expense.

(b) Disclose the following information for all properties specified in paragraph (a) of this section:

- (1) A map or maps, of appropriate scale, showing the locations of all properties. Such maps should be legible on the page when printed.
- (2) An overview of the registrant's mining properties and operations. This overview may be presented in narrative or tabular format.
 - (i) The overview must include aggregate annual production for the properties during each of the three most recently completed fiscal years preceding the filing.
 - (ii) The overview should include, as relevant, the following items of information for the mining properties considered in the aggregate:
 - (A) The location of the properties;
 - (B) The type and amount of ownership interests;
 - (C) The identity of the operator or operators;
 - (D) Titles, mineral rights, leases or options and acreage involved;
 - (E) The stages of the properties (exploration, development or production);
 - (F) Key permit conditions;
 - (G) Mine types and mineralization styles; and
 - (H) Processing plants and other available facilities.
 - (iii) When presenting the overview, the registrant should include the amount and type of disclosure concerning its mining properties that is material to an investor's understanding of the registrant's properties and mining operations in the aggregate. This disclosure will depend upon a registrant's specific facts and circumstances and may vary from registrant to registrant. A registrant should refer to, rather than duplicate, any disclosure concerning individually material properties provided in response to § 229.1304.
 - (iv) A registrant with only a royalty or similar economic interest should provide only the portion of the production that led to royalty or other incomes for each of the three most recently completed fiscal years.
- (3) A summary of all mineral resources and mineral reserves, as determined by the qualified person, at the end of the most recently completed fiscal year by commodity and geographic area and for each property containing 10% or more of the registrant's combined measured and indicated mineral resources or containing 10% or more of the registrant's mineral reserves. This summary must be provided for each class of mineral resources (inferred, indicated, and measured), together with total measured and indicated mineral resources, and each class of mineral reserves (probable and proven), together with total mineral reserves, using the format in Table 1 to paragraph (b) of this section for mineral resources, and the format in Table 2 to paragraph (b) of this section for mineral reserves.
 - (i) The term *by geographic area* means by individual country, regions of a country, state, groups of states, mining district, or other political units, to the extent material to and necessary for an investor's understanding of a registrant's mining operations.
 - (ii) All disclosure of mineral resources by the registrant must be exclusive of mineral reserves.

- (iii) All disclosure of mineral resources and reserves must be only for the portion of the resources or reserves attributable to the registrant's interest in the property.
- (iv) Each mineral resource and reserve estimate must be based on a reasonable and justifiable price selected by a qualified person pursuant to § 229.1302(d) or (e), which provides a reasonable basis for establishing the prospects of economic extraction for mineral resources, and is the expected price for mineral reserves.
- (v) Each mineral resource and reserve estimate called for in Tables 1 and 2 to paragraph (b) of this section must be based on a specific point of reference selected by a qualified person. The registrant must disclose the selected point of reference for each of Tables 1 and 2 to paragraph (b) of this section.
- (vi) The registrant may modify the tabular formats in Tables 1 and 2 to paragraph (b) of this section for ease of presentation or to add information.
- (vii) All material assumptions and information pertaining to the summary disclosure of a registrant's mineral resources and mineral reserves required by this section, including material assumptions related to price estimates, must be current as of the end of the registrant's most recently completed fiscal year.

TABLE 1 TO PARAGRAPH (b)—SUMMARY MINERAL RESOURCES AT END OF THE FISCAL YEAR ENDED [DATE] BASED ON [PRICE] ¹

	Measured mineral resources		Indicated mineral resources		Measured + indicated mineral resources		Inferred mineral resources	
	Amount	Grades/qualities	Amount	Grades/qualities	Amount	Grades/qualities	Amount	Grades/qualities
Commodity A:								
Geographic area A								
Geographic area B								
Mine/Property A								
Mine/Property B								
Other mines/properties								
Other geographic areas								
Total								
Commodity B:								
Geographic area A								
Geographic area B								
Mine/Property A								
Mine/Property B								
Other mines/properties								
Other geographic areas								
Total								

¹ The registrant must use a reasonable and justifiable price for each commodity, which it must disclose, together with the time frame and point of reference used, when estimating mineral resources for this Table 1.

**TABLE 2 TO PARAGRAPH (b)—SUMMARY MINERAL RESERVES AT END OF THE FISCAL
YEAR ENDED [DATE] BASED ON [PRICE] ¹**

	Proven mineral reserves		Probable mineral reserves		Total mineral reserves	
	Amount	Grades/ qualities	Amount	Grades/ qualities	Amount	Grades/ qualities
Commodity A:						
Geographic area A						
Geographic area B						
Mine/Property A						
Mine/Property B						
Other mines/ properties						
Other geographic areas						
Total						
Commodity B:						
Geographic area A						
Geographic area B						
Mine/Property A						
Mine/Property B						
Other mines/ properties						
Other geographic areas						
Total						

¹ The registrant must use a reasonable and justifiable price for each commodity, which it must disclose, together with the time frame and point of reference used, when estimating mineral reserves for this Table 2.